

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patricia Schnupp	Team: Team # 4	CCRB Case #: 200613559	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 09/16/2006 1:10 AM	Location of Incident: Amboy Road and Tysen Lane	18 Mo. SOL 3/16/2008	Precinct: 122		
Date/Time CV Reported Thu, 10/12/2006 11:45 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 10/12/2006 11:45 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Isaac Acevedo	19650	931509	122 PCT
2. POM Joseph Metsopulos	05821	937101	122 PCT
3. SGT Richard Perullo	05211	922962	122 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Joseph Memoly	01826	903173	122 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Richard Perullo	Abuse: Sgt. Richard Perullo stopped the car in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . SGT Richard Perullo	Abuse: Sgt. Richard Perullo stopped the car in which § 87(2)(b) was an occupant.	B . Complaint Withdrawn
C . POM Joseph Metsopulos	Abuse: PO Joseph Metsopulos frisked § 87(2)(b)	C . Complaint Withdrawn
D . SGT Richard Perullo	Abuse: Sgt. Richard Perullo frisked § 87(2)(b)	D . Unsubstantiated
E . SGT Richard Perullo	Abuse: Sgt. Richard Perullo searched § 87(2)(b)	E . Unsubstantiated
F . POM Joseph Metsopulos	Abuse: PO Joseph Metsopulos frisked § 87(2)(b)	F . Unsubstantiated
G . POM Joseph Metsopulos	Abuse: PO Joseph Metsopulos searched § 87(2)(b)	G . Unsubstantiated
H . SGT Richard Perullo	Abuse: Sgt. Richard Perullo searched the car in which § 87(2)(b) was an occupant.	H . Substantiated
I . POM Isaac Acevedo	Abuse: PO Isaac Acevedo frisked § 87(2)(b)	I . Unsubstantiated
J . POM Isaac Acevedo	Abuse: PO Isaac Acevedo searched § 87(2)(b)	J . Substantiated
K . POM Isaac Acevedo	Abuse: PO Isaac Acevedo strip-searched § 87(2)(b) on Amboy Road and Tysens Lane in Staten Island.	K . Substantiated

Synopsis

On September 16, 2006, § 87(2)(b) was a passenger in a pick-up truck driven by his friend § 87(2)(b). The truck was pulled over on Amboy Road and Tysens Lane in Staten Island (Allegations A and B) by PO Joseph Metsopulos and Sgt. Richard Perullo. § 87(2)(b) and § 87(2)(b) were made to exit their vehicle. § 87(2)(b) was allegedly frisked by PO Metsopulos (Allegation C) and § 87(2)(b) was allegedly frisked and searched by Sgt. Perullo and PO Metsopulos (Allegations D, E, F, and G). Sgt. Joseph Memoly and PO Isaac Acevedo then arrived at the location. Sgt. Perullo searched the inside of the pick-up truck (Allegation H) while PO Acevedo frisked and searched § 87(2)(b) (Allegation I and J). PO Acevedo allegedly pulled down § 87(2)(b)'s pants and underwear while in the street and retrieved felony weight crack-cocaine from inside § 87(2)(b)'s body (Allegation K).

§ 87(2)(g)

Therefore it is recommended that Allegation A be unsubstantiated. § 87(2)(b), § 87(2)(g) Allegations B and C are therefore withdrawn. § 87(2)(g)

Therefore, Allegations D, E, F, and G should be unsubstantiated. § 87(2)(g)

, it is recommended that Allegation H be closed as substantiated. § 87(2)(g)

Allegation I should therefore be unsubstantiated. § 87(2)(g)

Therefore it is recommended that Allegations J and K be substantiated.

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) provided four statements regarding this incident, his initial complaint on October 12, 2006 (encl. 7A-7B), his sworn CCRB testimony (encl. 8A-8D) on October 27, 2006, his 50-H testimony on § 87(2)(a) Gen.Mun. §50- (encl. 10A-10I) and a clarifying statement on April 17, 2007. § 87(2)(g)

On September 16, 2006 at 12:30am, § 87(2)(b) was a passenger in his friend § 87(2)(b)'s pick up truck. § 87(2)(b) and § 87(2)(b) came from § 87(2)(b)'s house and they were driving down Guyon Avenue. § 87(2)(b) planned to stop at a store on Guyon Avenue but decided not to because there was no parking, so he drove slowly past it before deciding to keep going. § 87(2)(b) did not stop at the deli but drove slowly past it before deciding to keep going. § 87(2)(b) made a right onto Amboy Road. As they were driving past Monsignor Farrell High School, § 87(2)(b) and § 87(2)(b) were pulled over by an unmarked black Chevy Impala. An officer, identified through the investigation as Sgt. Richard Perullo, approached the car first on the passenger's side. Another officer, identified through the investigation as PO Joseph Metsopulos, came up after Sgt. Perullo on the driver's side. § 87(2)(b) asked why he was being pulled over and told the officers that his § 87(2)(b) is a police officer and his § 87(2)(b) is a retired police officer. PO Metsopulos responded that everyone in Staten Island has a PBA card and is related to someone on the force so it would not help him. Right after the discussion about the PBA card, Sgt. Perullo

asked § 87(2)(b) to exit the vehicle and § 87(2)(b) stood right in front of the passenger side door. § 87(2)(b) was also asked to exit the vehicle by PO Metsopulos and was immediately taken to the back of the pick up. § 87(2)(b) was not sure if the officers asked for § 87(2)(b)'s license and registration.

After a few seconds Sgt. Perullo brought § 87(2)(b) to the back of the pick up. Both officers took turns frisking and searching § 87(2)(b). Both officers took out § 87(2)(b)'s keys, cell phone, and identification from his pockets. One officer held § 87(2)(b)'s pant waist up and the other felt around his crotch and buttocks area. The officers took turns doing this. These two officers also started to pat down § 87(2)(b) but they stopped when he began to protest. The officers did not find anything illegal on § 87(2)(b) or on § 87(2)(b). After § 87(2)(b) was searched, Sgt. Perullo and PO Metsopulos held § 87(2)(b) and § 87(2)(b) by the backs of their shirts and used their radios. § 87(2)(b) could not hear what they were saying because the officers were talking very low. § 87(2)(b) had approximately 14 rocks of crack cocaine inside of his anus. § 87(2)(b) inserted these crack rocks into his anus about one hour prior to being pulled over. § 87(2)(b) stated the crack rocks were far enough up his anus that they were not exposed or visible at all.

A few minutes later, an unmarked black Crown Victoria arrived. Another officer, identified through the investigation as Sgt. Joseph Memoly, exited the vehicle first. Another officer, identified through the investigation as PO Isaac Acevedo, exited the vehicle next. Sgt. Memoly and PO Acevedo approached § 87(2)(b) and started to search and frisk him. The officers were mostly rubbing his crotch and buttocks area through his pants. PO Acevedo and Sgt. Memoly did not search § 87(2)(b). As PO Acevedo and Sgt. Memoly searched § 87(2)(b) PO Metsopulos and Sgt. Perullo searched the inside of § 87(2)(b)'s truck. § 87(2)(b) was standing at the back of the pick up truck on the driver's side while Sgt. Memoly and PO Acevedo searched § 87(2)(b) on the back of the truck on the passenger side. Sgt. Memoly and PO Acevedo then took § 87(2)(b) to the passenger side of the pick up truck near the back wheel where he faced the pick-up truck. Sgt. Memoly and PO Acevedo unbuckled § 87(2)(b)'s belt, unzipped his pants, pulled the pants down to § 87(2)(b)'s ankles and started looking in the leg area of his boxers. The officers pulled his boxers up so his penis and testicles were hanging outside of his boxers. As this was going on, Sgt. Memoly and PO Acevedo kept telling § 87(2)(b) that they had heard of him before and they knew he was hiding something underneath his testicles. Both officers also frisked § 87(2)(b) through his boxer shorts. Sgt. Memoly took out a flashlight and pulled the elastic waistband of § 87(2)(b)'s boxer shorts out in both the front and back. Sgt. Memoly shined a light on § 87(2)(b)'s penis and buttocks. Sgt. Memoly and PO Acevedo were both looking inside § 87(2)(b)'s boxer shorts. When Sgt. Memoly and PO Acevedo did not find anything, PO Acevedo asked Sgt. Perullo and PO Metsopulos if they had any gloves. PO Acevedo was still shining the flashlight inside of § 87(2)(b)'s boxers. Sgt. Memoly responded that he had gloves in the back of the car. Sgt. Memoly then went to the trunk of the Crown Victoria retrieved a pair of blue gloves. § 87(2)(b) described the gloves as yellow cleaning gloves except they were blue.

PO Acevedo and Sgt. Memoly then told § 87(2)(b) he should just tell them where the drugs are so the charges would not be as bad. § 87(2)(b) responded that he did not know what the officers were talking about. § 87(2)(b) never admitted to having drugs even though he was asked if he did numerous times by PO Acevedo and Sgt. Memoly. The officers told § 87(2)(b) to place his hands above the wheel and to move his legs all the way back so he was almost bent over. PO Acevedo then put on the gloves and Sgt. Memoly pulled § 87(2)(b)'s boxers down in the back by his buttocks. The boxers were still up a little in the front. PO Acevedo then used his hands to feel underneath § 87(2)(b)'s testicles. PO Acevedo then rubbed his hand in between § 87(2)(b)'s buttocks and stated he felt something. PO Acevedo then put his fingers up inside § 87(2)(b)'s buttocks and pulled out a small plastic bag filled with approximately 14 rocks of crack cocaine. PO Acevedo and Sgt. Memoly kept asking him to give them information about drug dealers and he ignored them. PO Acevedo walked § 87(2)(b) over to the Crown Victoria.

As they walked away from the pick up truck, PO Acevedo stopped and asked § 87(2)(b) what they should do with § 87(2)(b) and if § 87(2)(b) had been with him all day. § 87(2)(b) responded that § 87(2)(b) had not been with him all day and that they were just going for a drink. § 87(2)(b) told PO Acevedo to let § 87(2)(b) go and they did. § 87(2)(b) stated § 87(2)(b) continued to stand at the rear

of the pick up truck on the driver's side while this was going on. § 87(2)(b) believes § 87(2)(b) had to see something since his pick up truck is old and very low to the ground. § 87(2)(b) drove off first. Sgt. Memoly drove the Crown Victoria and PO Acevedo sat in the backseat with § 87(2)(b) and transported him to the 122nd Precinct.

§ 87(2)(b) was arraigned the next day and taken to Riker's Island that evening, which was a Saturday. § 87(2)(b) remained in Riker's Island until the following Thursday when he hired a lawyer, § 87(2)(b) and was released on his own recognizance. § 87(2)(b) had another court date on § 87(2)(b). On that day the Assistant District Attorney declined to prosecute because he felt § 87(2)(b)'s constitutional rights had been violated. § 87(2)(b) has been arrested before for § 87(2)(b) when he was § 87(2)(b). § 87(2)(b) spent six months on Riker's Island and is currently on 5 years probation. This incident only briefly affected § 87(2)(b)'s probation status since the Assistant District Attorney declined to prosecute. Since this incident, § 87(2)(b) has only spoken to his friend § 87(2)(b) over the phone and § 87(2)(b) expressed his disbelief about this incident. § 87(2)(b)'s civil attorney, § 87(2)(b), stated that he plans on filing a notice of claim as soon as he gets the criminal file from § 87(2)(b)'s criminal attorney § 87(2)(b).

§ 87(2)(a) Gen.Mun. §50-H(3)

§ 87(2)(b) had stated in his CCRB testimony that he and § 87(2)(b) were on their way out for a drink when this incident occurred.

Results of Investigation

Attempts to Contact

§ 87(2)(b) the driver of the vehicle, was also a victim in this complaint based on § 87(2)(b)'s testimony. A message was left for § 87(2)(b) on October 30, 2006, and a letter was sent to his residence. § 87(2)(b) called the CCRB on October 31, 2006, and an interview was arranged for November 6, 2006. On November 6, 2006, § 87(2)(b) did not appear for his interview so a letter was sent to his residence and a message was left on § 87(2)(b)'s voicemail. On November 9, 2006, another message was left for § 87(2)(b) with his wife. On November 14, 2006, § 87(2)(b) was contacted and he indicated he did not want to participate in the investigation because he has a sister on the job and he did not want to get any officers in trouble. § 87(2)(b) commented that what happened was "wrong" and "fucked up" but refused to elaborate what happened during the incident.

Identification of Officers Interviewed

There were four officers interviewed regarding this incident, namely Sgt. Memoly, Sgt. Perullo, PO Acevedo, and PO Metsopulos. PO Acevedo was § 87(2)(b)'s arresting officer during this incident. According to roll call, PO Acevedo worked with Sgt. Memoly on the date of this incident. § 87(2)(g)

§ 87(2)(b). In addition, all the officers confirmed their involvement in this incident during their CCRB testimony.

PO Isaac Acevedo

Memo Book (encl. 11A-11B)

0118: one under c/o Tysens Lane and Amboy Road

Complaint Report (encl. 13A-13B)

§ 87(2)(a) 160.50

Arrest Report (encl. 14A-14C)

§ 87(2)(a) 160.50

Stop and Frisk Report (encl. 12A-12B)

§ 87(2)(b) was stopped because he fit the description of a person involved in a crime, he engaged in actions indicative of engaging in a drug transaction, and committed furtive movements. § 87(2)(b) additionally changed directions at the sight of the officer and provided evasive, false, and inconsistent answers. The furtive movements § 87(2)(b) allegedly committed were the reason he was frisked. The reason § 87(2)(b) was searched was because he was arrested. § 87(2)(b)'s demeanor and any remarks made by § 87(2)(b) were not noted in the report. According to the report the crack was found inside of § 87(2)(b)'s pants. The stop occurred at 1:01am and lasted seventeen minutes. § 87(2)(b) was observed for approximately 2 minutes prior to being stopped.

CCRB Testimony (encl. 18A-18C)

On September 15, 2006 PO Isaac Acevedo worked from 5:30pm to 2:45am but worked overtime until 5:15am on September 16, 2006. PO Acevedo was part of the 122nd Precinct anti-crime team and worked with Sgt. Memoly, Sgt. Perullo, and PO Metsopolus. All of the officers were in plainclothes. PO Acevedo was assigned to an unmarked black Crown Victoria with Sgt. Memoly. PO Acevedo was interviewed at the CCRB on January 9, 2007.

Approximately four days earlier an § 87(2)(f) told PO Acevedo that § 87(2)(b) had "popped off shots" at the § 87(2) NYCHA development and was known to carry a weapon. PO Acevedo ran § 87(2)(b)'s arrest record a few days before and he had a history of drug arrests. PO Acevedo knew what § 87(2)(b) looked like from an arrest photo and from a description given § 87(2)(f). PO Acevedo stated § 87(2)(b) is known as "§ 87(2)(b) on the streets. § 87(2)(b) had also been seen using that red pick-up truck on prior dates with the driver. PO Acevedo did not have the plate number of the truck. PO Acevedo just stated that § 87(2)(b) is known in the precinct to use a red pick-up truck on occasion.

On September 16, 2006, PO Acevedo was driving on North Railroad Avenue at around 1:00 am when he noticed § 87(2)(b) in the passenger seat of a red pick-up truck which was coming towards PO Acevedo and Sgt. Memoly. PO Acevedo stated North Railroad Avenue is a narrow street and he was able to see § 87(2)(b)'s face as the officers drove past him. Sgt. Memoly was the driver and pulled a U-turn to follow § 87(2)(b) and eventually pull him over to talk to him. The pick-up truck made a left onto § 87(2)(b) but before the officers were able to pull § 87(2)(b) over an accident occurred at the intersection in front of them. The car has a "bubble" light that goes on the dashboard and PO Acevedo was about to put it on right before the accident occurred. PO Acevedo and Sgt. Memoly got out of the car and saw that it was a minor "fender bender." PO Acevedo radioed for another car, but did not wait for that car to arrive. PO Acevedo also radioed the other members of the anti-crime team, Sgt. Perullo and PO Metsopoulos, that § 87(2)(b) was coming down § 87(2)(b) and to look for him. PO Acevedo was at this accident for less than five minutes.

When PO Acevedo arrived at the location where § 87(2)(b) was pulled over, § 87(2)(b) and the driver were at the back of the red pickup truck. Sgt. Perullo and PO Metsopolus told PO Acevedo that § 87(2)(b) lifted up off the seat and made movements towards his rear as they walked towards his car. These officers believed § 87(2)(b) had put something up into his buttocks. § 87(2)(b) and the driver of the pickup were at the rear of the truck with their backs to each other. Sgt. Perullo and PO Metsopolus told PO Acevedo to frisk § 87(2)(b). PO Acevedo did not see Sgt. Perullo or PO Metsopolus frisk § 87(2)(b) and did not know if § 87(2)(b) had been frisked already.

PO Acevedo brought § 87(2)(b) around to the side of the truck by the rear passenger tire and PO Acevedo frisked § 87(2)(b). PO Acevedo asked § 87(2)(b) if he was concealing drugs and at first he refused to talk. PO Acevedo kept asking § 87(2)(b) if he was concealing drugs or a weapon and soon after PO Acevedo felt a bulge in § 87(2)(b)'s buttocks. § 87(2)(b) then responded "Yes." PO

Acevedo said, "Which one is it? Is it drugs?" § 87(2)(b) nodded in his head, which indicated yes. Tears started to stream down § 87(2)(b)'s face. Sgt. Memoly was with PO Acevedo while he frisked § 87(2)(b). PO Acevedo went to his car and retrieved a pair of rubber gloves for his safety. PO Acevedo put his hands down § 87(2)(b)'s pants in between his pants and his boxers and felt the bulge through his boxers. PO Acevedo pulled up § 87(2)(b)'s underwear so the bulge, which was a plastic bag with seventeen smaller bags of crack inside of it, was exposed. The bag was lodged in between § 87(2)(b)'s buttock cheeks and when PO Acevedo lifted up his underwear he saw the bag of crack and removed it. PO Acevedo did not have to unbutton § 87(2)(b)'s pants or pull them down because there was enough room for him to stick his hands down there. § 87(2)(b) was wearing jeans. PO Acevedo stated the bulge was not visible and was only felt through the pants. PO Acevedo did not know if the other officers felt the bulge.

After the drugs were recovered, PO Acevedo saw one of the other officers, whom he could not recall, search the driver of the pickup truck. Other officers, whom PO Acevedo could not recall, also searched the pickup truck, but only the area where § 87(2)(b) sat. No other contraband was found on § 87(2)(b). PO Acevedo stated he spoke with the driver of the pickup, who stated he drove § 87(2)(b) around and made a few stops and § 87(2)(b) got out of the car and got back in, but did not know what § 87(2)(b) was doing. PO Acevedo did not find it credible that the driver did not know what § 87(2)(b) was doing, presumably dealing drugs. The driver was not arrested or summonsed and was released from the location where he had been pulled over. All members of the anti-crime team went back to the 122nd Precinct after this arrest but could not remember who drove § 87(2)(b) back to the 122nd Precinct. § 87(2)(b) was strip-searched at the 122nd Precinct stationhouse by PO Acevedo. Sgt. Memoly authorized the strip-search and made the command log entry. PO Acevedo could not remember if anyone else was present during the strip-search. There was no contraband found on § 87(2)(b) during the strip-search at the Precinct. PO Acevedo did not have to testify in court regarding this arrest because the case was closed. PO Acevedo did not know why this case was closed.

PO Acevedo was asked to elaborate on the reasons for the stop that were on the UF 250: evasive or false answers and changing directions at the sight of police. PO Acevedo filled out the UF 250. PO Acevedo stated the driver told them that they had stopped at a Pathmark before they were pulled over. PO Acevedo stated that was false since he had been behind the truck § 87(2)(b) was in. PO Acevedo stated the other officers told him that when the pickup was driving up Guyon Avenue it turned around after they saw the other officers' car parked and drove in the opposite direction.

PO Acevedo has been promoted to the rank of Sergeant and transferred to the 75th Precinct since this incident.

Sgt. Joseph Memoly

CCRB Testimony (encl. 23A-23C)

On September 16, 2006, Sgt. Memoly was the anti-crime supervisor. Sgt. Memoly worked with PO Acevedo. Both officers were in plainclothes and assigned to an unmarked black Crown Victoria. Sgt. Memoly did not bring his memo book to the CCRB and did not have any memo book entries for this incident. Sgt. Memoly was interviewed at the CCRB on January 24, 2007.

Sgt. Memoly stated he has known § 87(2)(b) for years since he used to be a narcotics detective on Staten Island § 87(2)(b), § 87(2)(f)

§ 87(2)(b) Sgt. Memoly had heard a few days earlier § 87(2)(f) that "§ 87(2)(b)" had fired off a few shots in front of a bar in the area. § 87(2)(f)

§ 87(2)(b) Sgt. Memoly stated that § 87(2)(b) sometimes goes by the name "§ 87(2)(b)" on the streets. § 87(2)(f)

§ 87(2)(b) Sgt. Memoly did not know the date of the alleged gun shots and it was not being investigated. Sgt. Memoly was also unaware if there were any open complaints regarding that incident.

Sgt. Memoly was the driver and PO Acevedo was in the passenger seat when they observed § 87(2)(b) and another unknown individual standing on the sidewalk next to a parked car. Sgt. Memoly did not observe § 87(2)(b) for very long. Sgt. Memoly decided to make a U-turn to observe § 87(2)(b) further. As Sgt. Memoly made the U-turn, § 87(2)(b) got into the car, a red pick-up truck, and the car took off at a high rate of speed. § 87(2)(b) has been known to travel in that pick-up truck while conducting business. § 87(2)(b) got into the passenger seat and a white male that Sgt. Memoly did not recognize got into the driver's seat. Sgt. Memoly stated he felt that § 87(2)(b) recognized that they were the police when they passed, which is why § 87(2)(b) took off in such a hurry. Sgt. Memoly stated this raised his suspicion and Sgt. Memoly intended to pull the vehicle over. Sgt. Memoly did not recall if PO Acevedo put on the bubble light in an effort to pull over § 87(2)(b). Sgt. Memoly and PO Acevedo were a few car lengths behind § 87(2)(b)'s car on § 87(2)(b) when § 87(2)(b)'s car turned made a left onto § 87(2)(b). There was an accident in the intersection before Sgt. Memoly and PO Acevedo could make the turn to follow § 87(2)(b). Sgt. Memoly then used his cell phone to call the other team members, PO Metsopolus and Sgt. Perullo. Sgt. Memoly let the other officers know of § 87(2)(b)'s location, that § 87(2)(b) was acting suspiciously, and that Sgt. Memoly had intended to pull § 87(2)(b) over but was unable to since they observed an accident. Sgt. Memoly told them to be aware of § 87(2)(b) but did not instruct them to pull § 87(2)(b) over. Sgt. Memoly got out of the car and checked the people involved in the accident for injuries. It was only a fender-bender. Sgt. Memoly radioed for another car to come to the accident. Sgt. Memoly did not recall if he waited for the other car to arrive.

About ten minutes after the accident, Sgt. Memoly went to the location where § 87(2)(b) was pulled over, near Tysens Lane and Amboy Road. Sgt. Perullo called Sgt. Memoly to let him know where they were stopped. Sgt. Memoly and PO Acevedo exited the vehicle and § 87(2)(b) and § 87(2)(b) were already outside of the vehicle. § 87(2)(b) was at the rear of the pick-up truck and the other man was by the back of the police car. Sgt. Memoly and PO Acevedo spoke with § 87(2)(b). PO Acevedo did most of the questioning and Sgt. Memoly was not sure what § 87(2)(b) said. Sgt. Memoly was informed by the other officers that § 87(2)(b) was not searched or frisked before Sgt. Memoly and PO Acevedo arrived. Sgt. Memoly did not remember what if anything Sgt. Perullo or PO Metsopolus told him about § 87(2)(b)'s actions or demeanor prior to their arrival. PO Acevedo got gloves from their RMP and frisked and searched § 87(2)(b). Sgt. Memoly was asked if he knew why PO Acevedo used gloves during the search and he confirmed that the gloves are issued by the NYPD for the safety of the officers so they are not cut or injured and that it is a world full of diseases and that the officers can use the gloves, either latex or leather, to protect themselves. Sgt. Memoly stood back and took the role of security. At one point during the search § 87(2)(b) started crying. Sgt. Memoly did not hear the substance of the conversation between PO Acevedo and § 87(2)(b). PO Acevedo found bags of crack on § 87(2)(b) but Sgt. Memoly did not know how many bags or where they were found on § 87(2)(b). Sgt. Memoly believed the crack was found somewhere on § 87(2)(b)'s waistband. Sgt. Memoly stated he believed PO Acevedo used gloves during the search of § 87(2)(b). § 87(2)(b)'s clothing was not removed during this search. Sgt. Memoly did not see how the drugs were packaged when they were removed from § 87(2)(b)'s person but added he saw the crack later at the stationhouse and it was in cellophane. Sgt. Memoly did not recall the size of this cellophane.

Sgt. Perullo and PO Metsopolus were talking with § 87(2)(b) who was the driver. Sgt. Memoly remembered he that the pick-up truck was searched but did not know who searched the truck or when the truck was searched. Sgt. Memoly stated the officers believed that § 87(2)(b) was in possession of a gun. Sgt. Memoly stated § 87(2)(b) is known to use that red pick-up truck on occasion. Sgt. Memoly did not think § 87(2)(b) was strip-searched but was not sure since he responded to another call right after the officers arrived at the 122nd Precinct.

Sgt. Richard Perullo

Memo Book (encl. 19A-19B)

0107: 2 males stopped c/o Amboy and Tysens

0118: 1 under by PO Acevedo

CCRB Testimony (encl. 20A-20B)

On September 16, 2006 Sgt. Richard Perullo was the anti-crime supervisor. Sgt. Perullo worked with PO Joseph Metsopulos and both men were in plainclothes. Sgt. Perullo and PO Metsopulos were assigned to an unmarked black Chevy Impala. Sgt. Perullo was interviewed at the CCRB on January 24, 2007.

On September 16, 2006 at around 12:30am Sgt. Perullo received a call from Sgt. Memoly that he had seen a male Hispanic that looked familiar near the § 87(2)(b) homes. The man took off in a red pick-up with a male white and told Sgt. Perullo the direction the vehicle was going. Sgt. Memoly did not mention § 87(2)(b) s name. Sgt. Memoly stated that there was an accident and they were stuck at the accident scene. Sgt. Perullo later stated Sgt. Memoly did say it was § 87(2)(b) driving in the red pick-up truck. About 1:05am Sgt. Perullo noticed a red pick-up truck that matched the description given by Sgt. Memoly driving on Guyon Avenue. Sgt. Perullo made a U-turn and followed the red pick-up. The pick-up then made a right turn onto Amboy Road without signaling. Sgt. Perullo turned on the bubble light and pulled over the pick-up on the corner of Tysens Lane and Amboy Road. The truck continued for about a block before it pulled over. Sgt. Perullo called Sgt. Memoly to let him know the location where they had pulled over the pick-up truck.

As Sgt. Perullo approached the passenger side of the truck, he noticed § 87(2)(b) making movements toward his waist area and underneath the seat. As soon as Sgt. Perullo got to the window, § 87(2)(b) immediately stopped what he was doing with his hands and put them at his side. § 87(2)(b) stared directly ahead and did not look at Sgt. Perullo. § 87(2)(b) breathed very heavily and looked very nervous. Sgt. Perullo was concentrating on § 87(2)(b) and did not know PO Metsopulos' location. Sgt. Perullo asked § 87(2)(b) where he lived and for his identification but he did not respond. Sgt. Perullo also heard earlier in the week § 87(2)(f) that § 87(2)(b) had "popped off" some shots near the § 87(2)(b) NYCHA development § 87(2)(f)

§ 87(2)(b) Sgt. Perullo did not know if anyone was investigating the shots being fired. § 87(2)(b) Because of this knowledge and § 87(2)(b) s behavior, Sgt. Perullo feared § 87(2)(b) was in possession of a weapon and made § 87(2)(b) exit the vehicle. Sgt. Perullo did not remember if he saw any bulges on § 87(2)(b) when he exited the vehicle. Sgt. Perullo stated that § 87(2)(b) was wearing a large football jersey. Sgt. Perullo brought § 87(2)(b) and § 87(2)(b) to the rear of the pick-up truck. This is when Sgt. Memoly and PO Acevedo arrived.

Sgt. Perullo then went and searched the driver and passenger area, the seats, and underneath the seats of the vehicle. Sgt. Perullo also checked the glove compartment. Sgt. Perullo did not find any contraband inside the pick-up truck. Sgt. Perullo then went over to PO Metsopulos, who was at the rear of the pick-up truck with § 87(2)(b) and § 87(2)(b) § 87(2)(b) the driver and owner of the vehicle. PO Metsopulos and Sgt. Perullo took § 87(2)(b) to the back of their vehicle and § 87(2)(b) stayed at the rear of the pick-up truck with Sgt. Memoly and PO Acevedo. PO Metsopulos frisked § 87(2)(b) and Sgt. Perullo stood behind him, maintaining security. No contraband was found on § 87(2)(b) during the frisk. During this frisk Sgt. Perullo looked up and noticed § 87(2)(b) being led away in handcuffs. § 87(2)(b) was not given a summons but was warned. A stop and frisk report was filled out for § 87(2)(b). § 87(2)(b) was not strip-searched at the 122nd Precinct. Sgt. Perullo did not recall if he gave authorization for a strip-search. Sgt. Perullo knew seventeen bags of crack were found on § 87(2)(b) while at the scene, but was unaware of where on his person it was found.

PO Joseph Metsopulos

Memo Book (encl. 21A)

0059: 92x1 @ tysens ln and amboy rd

CCRB Testimony (encl. 22A-22B)

On September 16, 2006 PO Joseph Metsopulos was assigned to the 122nd Precinct Anti-Crime Unit. PO Metsopulos worked with Sgt. Perullo and both were in plainclothes. PO Metsopulos worked in an unmarked black Chevy Impala. PO Metsopulos was interviewed at the CCRB on January 24, 2007.

On September 16, 2006, PO Metsopulos was the driver of the vehicle and Sgt. Perullo sat in the passenger's seat. PO Metsopulos saw a red pick-up truck make a right turn onto Amboy Road without signaling. Sgt. Perullo put on the light and they pulled over the truck. The truck drove for about a block before it pulled over, which made PO Metsopulos suspicious. PO Metsopulos did not remember if they had received any information about the vehicle from their other team members prior to pulling the car over.

PO Metsopulos noticed the passenger was § 87(2)(b) § 87(2)(b). PO Metsopulos stated he had heard information recently from people on the streets that § 87(2)(b) is also known to carry a weapon and had recently "popped off" some shots near the § 87(2)(b) homes. § 87(2)(b) § 87(2)(b). PO Metsopulos did not know that if there was an open complaint against § 87(2)(b) or that if the shots being fired were being investigated by anyone. PO Metsopulos stated both the driver and the passenger seemed to be talking to each other, fidgeting, and moving around as he approached the vehicle. PO Metsopulos asked the driver, later identified as § 87(2)(b) § 87(2)(b) for his license and registration. PO Metsopulos asked § 87(2)(b) if he was aware he did not signal, why he took so long to pull over, and where he was going. § 87(2)(b) did not answer the questions but did provide his license. § 87(2)(b) and § 87(2)(b) were visibly nervous and were giving answers that did not make sense. PO Metsopulos could not remember what specifically did not make sense about the answers but stated that it "did not add up." PO Metsopulos later heard that § 87(2)(b) was fidgeting with his waistband but could not remember who told him that. PO Metsopulos did not witness this.

PO Metsopulos and Sgt. Perullo asked § 87(2)(b) and § 87(2)(b) to step out of the car, and they complied. PO Metsopulos and Sgt. Perullo brought § 87(2)(b) to the rear of the pick-up truck and told them to place their hands on the vehicle. PO Metsopulos stated that § 87(2)(b) was sweating more and seemed more nervous than § 87(2)(b). PO Metsopulos was asking § 87(2)(b) more questions and the answers did not make sense although he could not elaborate. PO Metsopulos stated § 87(2)(b) was next to him but did not remember where Sgt. Perullo was at this time. PO Metsopulos began to frisk § 87(2)(b) when PO Acevedo and Sgt. Memoly arrived. PO Metsopulos stated that Sgt. Perullo called the other team since there were two people in the vehicle. PO Metsopulos was unaware if the other team was notified by radio or cell phone, or at what point they were notified. PO Acevedo and Sgt. Memoly stayed with § 87(2)(b) and Sgt. Perullo and PO Metsopulos brought § 87(2)(b) to the back of their car. PO Metsopulos frisked § 87(2)(b) and no contraband was found. PO Metsopulos did not search the car and was unaware if anyone searched the car. After PO Metsopulos frisked § 87(2)(b) he noticed § 87(2)(b) being led away in handcuffs by PO Acevedo. § 87(2)(b) was let off with a warning and was not issued a summons. PO Metsopulos went back to the stationhouse but did not know who brought § 87(2)(b) there. PO Metsopulos did not remember if § 87(2)(b) was strip-searched, or if he took part in the strip-search. PO Metsopulos did not remember if he asked for authorization to strip-search § 87(2)(b). PO Metsopulos did not know who frisked § 87(2)(b) and did not see § 87(2)(b)'s pants removed during this incident.

NYPD Documents

SPRINT (encl. 24A)

At 1:18am on September 16, 2006 an arrest was made on Amboy Road and Tysens Lane on Staten Island in response to a 10-10V2 (possible crime-vehicle)

Roll Call (encl. 26A-26B)

According to the 122nd Precinct tour 3 roll call, Sgt. Perullo, PO Acevedo, and PO Metsopulos were assigned to the Anti-Crime Unit. Sgt. Memoly was assigned to special operations.

Command Log (encl. 25A)

According to the command log § 87(2)(b) was arrested by PO Acevedo at 1:18am on the corner of Tysens Lane and Amboy Road. § 87(2)(b)'s mental and physical condition is noted as good. § 87(2)(b) was taken to Central Booking at 4:15am. There was no notation regarding a strip-search being conducted.

Stop and Frisk Report (encl 12-A-12B)

The Stop and Frisk report for § 87(2)(b) which was filled out by PO Acevedo, indicated that the stop occurred at 1:01 am on the corner of Amboy Road and Tysens Lane on September 16, 2006. § 87(2)(b) was observed for two minutes prior to the stop and the stop itself lasted seventeen minutes. § 87(2)(b) was stopped because he fit a description, engaged in actions indicative of a drug transaction, made furtive movements, gave evasive answers to officers' questions, and changed directions at the sight of the officers. § 87(2)(b) was frisked as a result of his furtive movements. § 87(2)(b) was searched due to his arrest. Crack was found in § 87(2)(b)'s pants. § 87(2)(b)'s demeanor was not noted nor were any remarks he might have made during the stop.

The Stop and Frisk report for § 87(2)(b) which was filled out by PO Acevedo, indicated that the stop occurred at 1:01am on the corner of Tysens Lane and Amboy Road. § 87(2)(b) was observed for two minutes prior to the stop and the stop itself lasted seventeen minutes. § 87(2)(b) was stopped because he fit a description, engaged in actions indicative of a drug transaction, made furtive movements, associated with a person known for criminal activity, providing the officers with evasive answers and changed directions at the sight of the officers. § 87(2)(b) was frisked because of furtive movements, his refusal to comply with the officers' directions, and because he was suspected of a violent crime.

Notice of Claim (encl. 9A-9B)

§ 87(2)(b) filed a notice of claim in § 87(2)(b). § 87(2)(b) claimed that on September 16, 2006, he was "wrongfully detained, arrested, assaulted, touched, strip searched and imprisoned without justification, authorization, provocation, or cause..." § 87(2)(b) "sustained mental anguish, humiliation, embarrassment, harm to reputation, deprivation of human and civil rights, associated legal fees, and disability from usual activities." § 87(2)(b) is seeking compensation in the form of one hundred million dollars from the City of New York.

Disposition of Arrest (encl. 27A-27B)

§ 87(2)(b)'s arrest was dismissed on the motion of the Assistant District Attorney on § 87(2)(b)

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History (encl. A)

This is § 87(2)(b)'s first CCRB complaint.

Police Officer CCRB History (encl. 3A-6A)

Sgt. Memoly, with fourteen years on the job, has one substantiated complaint, case number 200300872, in which an abuse of authority other misconduct allegation was substantiated. The board recommended Sgt. Memoly be brought up on charges. Sgt. Memoly was given instructions by the NYPD. PO Metsopulos, with two years tenure, PO Acevedo, with five years tenure and Sgt. Perullo, with nine years tenure, have not been the subject of substantiated cases at the CCRB.

Allegations Not Pleaded

§ 87(2)(b) alleged that PO Acevedo went into his rectum to retrieve the crack-cocaine. PO Acevedo denied this. § 87(2)(g)

§ 87(2)(g)

Conclusions and Recommendations

Disputed/Undisputed Facts

§ 87(2)(g)

§ 87(2)(b) claimed that after he and § 87(2)(b) stopped at a red light, they proceeded through the intersection once the light turned green and were then pulled over by PO Metsopulos and Sgt. Perullo. Sgt. Perullo and PO Metsopulos testified that they pulled over § 87(2)(b) and § 87(2)(b) after § 87(2)(b) failed to signal while turning at a stop sign. PO Acevedo and Sgt. Memoly testified that they called Sgt. Perullo and PO Metsopulos to inform the officers of § 87(2)(b)'s position, so they could observe him. Sgt. Perullo confirmed this but PO Metsopulos denied receiving any information regarding § 87(2)(b)'s vehicle prior to pulling it over for failing to signal.

After stopping § 87(2)(b)'s vehicle, Sgt. Perullo and PO Metsopulos approached. Sgt. Perullo stated that § 87(2)(b) made movements underneath his seat and towards his waistband. PO Metsopulos stated that § 87(2)(b) was fidgety and nervous but could not elaborate how. Both officers claimed this raised their suspicions. PO Acevedo testified that Sgt. Perullo told him that § 87(2)(b) had made movements towards his buttocks as he approached the truck, leading Sgt. Perullo to believe that § 87(2)(b) had concealed something in his buttocks. PO Acevedo used this to justify search of § 87(2)(b).

§ 87(2)(g)

§ 87(2)(b) alleged that PO Metsopulos and Sgt. Perullo frisked and searched him. They deny this. PO Acevedo testified that he did not know if PO Metsopulos and Sgt. Perullo frisked § 87(2)(b). Sgt. Memoly stated that he was informed by PO Metsopulos and Sgt. Perullo that they did not frisk § 87(2)(b).

§ 87(2)(g)

§ 87(2)(b) stated it was searched by PO Metsopulos and Sgt. Perullo during the time he was being searched by PO Acevedo. Sgt. Perullo stated he searched the car almost immediately after § 87(2)(b) exited the vehicle. PO Acevedo stated that the car was searched by PO Metsopulos and Sgt. Perullo after § 87(2)(b) was arrested, which was after his search. Sgt. Memoly remembered the car was searched but could not remember when or who conducted the search. PO Metsopulos did not know if the car was searched. The extent of the search is also disputed. Sgt. Perullo stated he searched the whole front seat including the glove compartment, while PO Acevedo stated that only the area where § 87(2)(b) was sitting was searched.

§ 87(2)(b) claimed that after the initial frisk and search, PO Acevedo pulled his pants down to his ankles, exposing his underwear. § 87(2)(b) alleged that PO Acevedo, while using gloves, pulled down his boxer shorts in the back, exposing his buttocks, and proceeded to touch his testicles and buttocks. After a few moments, § 87(2)(b) alleged that PO Acevedo then inserted his hand into § 87(2)(b)'s buttocks and pulled out a bag containing seventeen crack rocks. PO Acevedo testified that while searching § 87(2)(b) he asked him if he had drugs or weapons and § 87(2)(b) responded affirmatively, which § 87(2)(b) denied. PO Acevedo stated that he put on gloves, stuck his hands inside of § 87(2)(b)'s pants, felt a bulge in the buttocks area through § 87(2)(b)'s boxers, and pulled § 87(2)(b)'s boxers up. PO Acevedo claimed that this motion exposed part of a bag from inside § 87(2)(b)'s buttocks, which he then pulled out. Sgt. Memoly, who was present when this occurred, denied having any knowledge as to where the crack was found on § 87(2)(b).

§ 87(2)(g)

§ 87(2)(b) alleged that he was strip-searched on the corner of Amboy Road and Tysens Lane, not at the

stationhouse. All of the officers denied that a strip-search took place on the street. PO Metsopulos did not recall if a strip-search was conducted at the 122nd Precinct and Sgt. Perullo did not recall if he authorized a strip-search of § 87(2)(b) [REDACTED]. Sgt. Memoly stated that he did not authorize a strip-search of § 87(2)(b) [REDACTED] at the stationhouse. PO Acevedo testified that he strip-searched § 87(2)(b) [REDACTED] at the stationhouse but failed to mention who authorized the strip-search. The arrest report indicated that a strip-search was conducted with negative results. The command log did not have any notations regarding a strip-search being conducted on § 87(2)(b) [REDACTED].

Assessment of Evidence

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(b) [REDACTED] also claimed he was frisked and searched by PO Metsopulos and Sgt. Perullo prior to the arrival of Sgt. Memoly and PO Acevedo. PO Metsopulos and Sgt. Perullo denied this. All the officers stated that they heard § 87(2)(b) [REDACTED] had recently shot off a gun. Sgt. Perullo testified that § 87(2)(b) [REDACTED] was making what he perceived to be furtive movements to his waistband and underneath the seat while the officers approached the vehicle. PO Metsopulos also stated § 87(2)(b) [REDACTED] was fidgety and appeared nervous. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g) [REDACTED]

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A: Abuse of Authority: Sgt. Richard Perullo authorized the stop of the car in which § 87(2)(b) was an occupant.

Sgt. Memoly stated that the vehicle § 87(2)(b) was in drove away quickly, but did not indicate the vehicle was speeding or that it was driving erratically. Sgt. Memoly and PO Acevedo stated they were about to pull over § 87(2)(b) but were unable to do so because of an accident. Sgt. Memoly stated he called Sgt. Perullo and informed him of § 87(2)(b)'s location to observe the vehicle he was in, while PO Acevedo stated he radioed the other team about § 87(2)(b) PO Metsopulos, the driver of Sgt. Perullo's vehicle, allegedly had no prior knowledge of this phone call from Sgt. Memoly or the radio transmission from PO Acevedo, and instead stated that he observed the vehicle § 87(2)(b) was in turn without signaling. Sgt. Perullo also stated that after receiving the radio call he followed § 87(2)(b) for a short time and he observed the red pick-up truck turn without a signal. According to Barry Kamins *New York Search and Seizure* (encl. 2A-2F) "...the Court of Appeals held that an automobile stop is lawful when an officer has probable cause to believe that an individual has violated the Vehicle and Traffic Law. In such cases, the motivation for the stop is irrelevant...In most cases, once a police officer observes a traffic infraction, that will be sufficient to constitute probable cause." § 87(2)(b) denied that the vehicle committed a traffic infraction. Kamins says, "It should be noted that the fact the police do not issue a summons for a violation of the Vehicle and traffic Law does not invalidate the stop." § 87(2)(g)

Therefore it is recommended that Allegation A be **unsubstantiated**.

Allegation B: Abuse of Authority: Sgt. Richard Perullo authorized the stop of the car in which § 87(2)(b) was an occupant.

Allegation C: Abuse of Authority: PO Joseph Metsopulos frisked § 87(2)(b)

§ 87(2)(b) was the driver of the vehicle but refused to provide a sworn statement relating to this incident.

§ 87(2)(g)

it recommended that Allegations B and C be closed as **complaint withdrawn**.

Allegation D: Abuse of Authority: PO Joseph Metsopulos frisked § 87(2)(b)

Allegation E: Abuse of Authority: PO Joseph Metsopulos searched § 87(2)(b)

Allegation F: Abuse of Authority: Sgt. Richard Perullo frisked § 87(2)(b)

Allegation G: Abuse of Authority: Sgt. Richard Perullo searched § 87(2)(b)

§ 87(2)(b) alleged that he was frisked and searched by PO Metsopulos and Sgt. Perullo immediately after they made him exit the vehicle. Both officers denied this. Both officers know § 87(2)(b) and, based on prior information, they believed that he was in possession of a gun. Sgt. Perullo allegedly observed § 87(2)(b) make furtive movements underneath the seat and towards his waistband. PO Metsopulos did not see this and only stated § 87(2)(b) was fidgety. § 87(2)(b) stated he sat still and did not make any movements in the car when the officers pulled him over. § 87(2)(g)

PO Metsopulos admitted to frisking § 87(2)(b) but not § 87(2)(b) PO Metsopulos did not recall where Sgt. Perullo was when this occurred. According to

Kamins, “If police possess reliable information that one of the occupants of a vehicle might possess a weapon or that there are weapons in the vehicle, a frisk would be justified as a self-protective measure...If a police officer observes a passenger engaging in furtive conduct that gives rise to a reasonable belief that the passenger is armed, a frisk will be lawful” (encl. 2A-2F). § 87(2)(g)

Therefore it is recommended that Allegations D, E, F, and G be **unsubstantiated**.

Allegation H: Sgt. Richard Perullo searched the vehicle in which § 87(2)(b) was an occupant. Sgt. Perullo claimed he searched the inside of the pick-up truck, namely the entire driver and passenger’s seats, underneath the driver and passenger’s seats, and inside the glove compartment. § 87(2)(g)

Kamins explains that a protective search for weapons is appropriate, but that it is a limited protective search. The officer must be able to articulate an “actual and specific” fear for safety (encl. 2A-F). § 87(2)(g)

it is recommended that Allegation H be **substantiated**.

Allegation I: Abuse of Authority: PO Isaac Acevedo frisked § 87(2)(b)

PO Acevedo, who denied knowing if § 87(2)(b) had been frisked prior to his arrival, testified Sgt. Perullo informed him that § 87(2)(b) made movements indicating he put something up his buttocks and ordered him to frisk § 87(2)(b). Sgt. Perullo did not mention this during his CCRB testimony, nor did any other officer. § 87(2)(g)

As Kamins explains (encl.2A-G), an officer is permitted to frisk an individual when he has a reasonable basis for suspecting that the individual is armed and dangerous. § 87(2)(g)

it is recommended that Allegation I be **unsubstantiated**.

Allegation J: Abuse of Authority: PO Isaac Acevedo searched § 87(2)(b)

Allegation K: Abuse of Authority: PO Isaac Acevedo strip-searched § 87(2)(b) on Amboy Road and Tysens Lane in Staten Island.

PO Acevedo stated he felt a bulge near § 87(2)(b)’s buttocks during his frisk, through his jeans, which prompted him to search § 87(2)(b) further. PO Acevedo did not testify that he thought this was a weapon. § 87(2)(g)

In New York, there is no “plain touch” rule (encl. A-D). § 87(2)(g)

PO Acevedo alleged that he asked § 87(2)(b) if he had guns or drugs and § 87(2)(b) nodded affirmatively when asked if the bulge was drugs. § 87(2)(g)

§ 87(2)(g)

According to PO Acevedo, he then put on gloves and went into § 87(2)(b) pants. § 87(2)(g)

According to PO Acevedo, this was all done without PO Acevedo opening, unzipping, or unbuckling § 87(2)(b)'s pants. It is there that § 87(2)(b) alleges that PO Acevedo felt the bulge after his pants and underwear were pulled down and he had stuck his fingers inside § 87(2)(b)'s buttocks. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) stated the crack was inserted far enough up his buttocks that it was not visible. § 87(2)(g)

Department Guidelines (encl.1A-1B) dictate that the desk Sergeant decides whether or not a strip-search is justified and will be conducted at the stationhouse. § 87(2)(g)

Patrol Guide procedure 208-05 (encl. x) states a strip-search will be conducted "...in a secure area in utmost privacy..." § 87(2)(g) According to NYPD Patrol Guide procedure 208-05, "If an unusual object is detected, the officer will reach into or under the clothing to remove it." § 87(2)(g)

§ 87(2)(g)

Given these facts it is recommended that Allegation J and K be **substantiated**.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: